

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Brickell	Team: Squad #01	CCRB Case #: 201405929	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 06/14/2014 1:05 AM	Location of Incident: East New York Avenue and Schenectady Avenue; 71st Precinct stationhouse	18 Mo. SOL 12/14/2015	Precinct: 71
Date/Time CV Reported Mon, 06/16/2014 12:59 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/16/2014 12:59 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Marc Lappas	20793	951898	071 PCT
2. SGT Luis Lerebours	1606	945226	071 PCT
3. POM Maximillia Gardner	04535	952766	071 PCT
4. DT3 Paul Marconi	5666	930648	GANG BS
5. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peter Mombrun	22302	953126	071 PCT
2. POF Tracey Rooney	05882	953338	071 PCT
3. POM Luis Lopez	27415	930590	071 PCT
4. POF Alodia Rodriguez	09833	947837	071 PCT
5. DT3 Peter Mccarthy	04143	922728	GANG BS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Luis Lerebours	Force: Sgt. Luis Lerebours used physical force against § 87(2)(b) at East New York Avenue and Schenectady Avenue.	A . Exonerated
B . POM Maximillia Gardner	Force: PO Maximillian Gardner used physical force against § 87(2)(b) at East New York Avenue and Schenectady Avenue.	B . Exonerated
C . POM Marc Lappas	Force: PO Marc Lappas struck § 87(2)(b) with a nighstick at East New York Avenue and Schenectady Avenue.	C . Exonerated
D . SGT Luis Lerebours	Discourtesy: Sgt. Luis Lerebours spoke discourteously to § 87(2)(b) at East New York Avenue and Schenectady Avenue.	D . Unfounded
E . SGT Luis Lerebours	Force: Sgt. Luis Lerebours used pepper spray against § 87(2)(b) at East New York Avenue and Schenectady Avenue.	E . Unfounded

Officer(s)	Allegation	Investigator Recommendation
F . POM Marc Lappas	Force: PO Marc Lappas used a chokehold against § 87(2)(b) at East New York Avenue and Schenectady Avenue.	F . Unfounded
G . An officer	Force: An officer struck § 87(2)(b) with a nightstick at East New York Avenue and Schenectady Avenue.	G . Unfounded
H . DT3 Paul Marconi	Abuse: Det. Paul Marconi restricted § 87(2)(b)'s breathing at East New York Avenue and Schenectady Avenue.	H . Unfounded
I . DT3 Paul Marconi	Discourtesy: Det. Paul Marconi spoke discourteously to § 87(2)(b) at East New York Avenue and Schenectady Avenue.	I . Unfounded
J . POM Marc Lappas	Discourtesy: PO Marc Lappas spoke discourteously to § 87(2)(b) en route to the 71st Precinct stationhouse.	J . Unsubstantiated

Case Summary

On June 16, 2014, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board (CCRB) via telephone on behalf of himself and his brother, § 87(2)(b). On June 14, 2014, at 1:05 a.m., § 87(2)(b)'s vehicle was stopped at the corner of East New York Avenue and Schenectady Avenue in Brooklyn for driving over a double-yellow line and failure to use his turn signal. § 87(2)(b) was driving the vehicle, § 87(2)(b) was in the front passenger seat, § 87(2)(b)'s wife, § 87(2)(b) was in the rear driver's-side seat, and § 87(2)(b)'s girlfriend, § 87(2)(b) § 87(2)(b) (who refused to cooperate with the investigation because she did not want to be involved), was in the rear passenger-side seat. Unbeknownst to § 87(2)(b) at the time, he had an open warrant for an unpaid traffic violation.

Sgt. Luis Lerebours used physical force against § 87(2)(b) before removing him from the vehicle (**Allegation A**). PO Marc Lappas and PO Maximillian Gartner then removed § 87(2)(b) from the vehicle, and struck him with a nightstick and fist (**Allegations B and C**). Sgt. Lerebours allegedly spoke discourteously to § 87(2)(b) and allegedly used pepper spray against him (**Allegations D and E**), and PO Lappas allegedly used a chokehold against § 87(2)(b) before arresting him, and an officer allegedly hit § 87(2)(b) with a nightstick (**Allegations F and G**). Det. Paul Marconi allegedly restricted § 87(2)(b)'s breathing and allegedly used profanity towards him while he was being placed in a van for transport (**Allegations H and I**), and PO Lappas allegedly spoke discourteously to him at the 71st Precinct stationhouse (**Allegation J**). § 87(2)(b) and § 87(2)(b) were both arrested. § 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(b) He was also given a DUI test, but blew a .06 on a breathalyzer (at 3:20 a.m.), and was not charged. § 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(b) who was a witness to the incident, was also arrested for § 87(2)(b) and given a summons at the 71st Precinct stationhouse. § 87(2)(b) has a history with officers from the 71st Precinct (see criminal history below), and consumed alcohol prior to the incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- As § 87(2)(b) and § 87(2)(b) were both arrested, this complaint was ineligible for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As on December 5, 2014, no notice of claim had been filed by § 87(2)(b) or § 87(2)(b) (encl. 32).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories (encl. 1A – F)

- This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b).
- PO Marc Lappas has been a member of the service for two years and there are no substantiated CCRB allegations against him.
 - PO Lappas had one other allegation involving force, which was exonerated. § 87(2)(g)
- Sgt. Luis Lerebours has been a member of the service for seven years and there are no substantiated CCRB allegations against him.

- Sgt. Lerebours had three previous complaints involving force, and one involving a chokehold, and the victim was uncooperative in all three. § 87(2)(g)
- PO Maximillian Gardner has been a member of the service for three years and this is the first CCRB complaint against him.
- Det. Paul Marconi has been a member of the service for twelve years, and there is one substantiated complaint against him.
 - In complaint number 200309113, the CCRB substantiated stop, frisk and search of person allegations against Det. Marconi, and recommended charges. In April 2009, the NYPD imposed instructions on Det. Marconi.
 - Det. Marconi had one previous complaint involving a discourtesy, in which he allegedly told the complainant to “Shut the fuck up,” however, it was closed as complainant uncooperative. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Force: Sgt. Luis Lerebours used physical force against § 87(2)(b) at East New York Avenue and Schenectady Avenue.

It is undisputed § 87(2)(g) that Sgt. Lerebours opened the passenger’s side door and reached across § 87(2)(b) to remove the keys from the ignition in an attempt to prevent § 87(2)(b) from fleeing the scene. Sgt. Lerebours believed that § 87(2)(b) might attempt to flee based on his refusal to comply with PO Lappas’ multiple directives, his raised voice, stressful tone, and aggressive demeanor. It is also undisputed by virtue of § 87(2)(b)s testimony that he made contact with Sgt. Lerebours’ arm when he reached into the vehicle.

§ 87(2)(b) testified that when Sgt. Lerebours reached across him, he felt threatened because of the surgically implanted rod in his right leg, and pushed Sgt. Lerebours’ arm away from him. Sgt. Lerebours yelled that § 87(2)(b) had attacked him and punched § 87(2)(b) in the chest five or six times, then removed him from the vehicle. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) testified that § 87(2)(b) did not make contact with Sgt. Lerebours. Sgt. Lerebours yelled that § 87(2)(b) punched him, and then punched § 87(2)(b) in the chest six or seven times before removing him from the vehicle. § 87(2)(b) § 87(2)(b) who was sitting in the rear driver’s side seat, testified that she did not see § 87(2)(b) make contact with Sgt. Lerebours, and did not see Sgt. Lerebours punch § 87(2)(b) because she was focused on § 87(2)(b)s interaction with the other officers at the time.

Sgt. Lerebours testified that when he reached into the vehicle, § 87(2)(b) grabbed his right hand and twisted it to prevent him from removing the keys, causing a laceration to Sgt. Lerebours’ middle finger. He noted the injury in his memo book, stating, “§ 87(2)(b) § 87(2)(b) did grab me and elbow me in the chest causing minor laceration to left middle finger and pain and difficulty breathing,” (encl. 11A – D). Sgt. Lappas did not seek medical treatment, and there was no AIDED or LOD report (encl. 35Q). When Sgt. Lerebours exited the vehicle, § 87(2)(b) elbowed him in the chest, causing pain and shortness of breath. He did not recall whether he punched § 87(2)(b) Sgt. Lerebours then removed § 87(2)(b) from the vehicle and placed him under arrest for § 87(2)(b).

side of the face five times before PO Lappas handcuffed him. § 87(2)(b) was diagnosed with contusions on his right wrist and chest wall. He did not sustain any additional injuries (see enclosed medical records), and his arrest photograph did not show any visible injuries to his face (encl. 3G).

§ 87(2)(b) and § 87(2)(b) corroborated that PO Lappas and PO Gardner pulled § 87(2)(b) out of the vehicle. § 87(2)(b) testified that PO Gardner punched § 87(2)(b) in the face four or five times, but did not detail any additional force. § 87(2)(b) corroborated that PO Lappas hit § 87(2)(b) with a nightstick six to ten times in his legs, and that PO Gardner punched § 87(2)(b) in the face an unknown number of times before he was handcuffed.

§ 87(2)(b) § 87(2)(g) testified that PO Lappas repeatedly hit § 87(2)(b) with his nightstick, like he was “beating a slave,” but was unable to estimate the number of times or where. He had initially been 100 to 150 feet away, but saw PO Lappas strike § 87(2)(b) in the legs once he got closer. § 87(2)(b) did not observe the officers use any additional force against § 87(2)(b).

§ 87(2)(g) PO Lappas and PO Gardner ordered § 87(2)(b) to place his hands behind his back in order to handcuff him, but he refused to do so. When they attempted to pull his hands behind his back § 87(2)(b) tensed his arms and pushed the officers away. PO Gardner punched § 87(2)(b) in the face in an attempt to stun him, however, § 87(2)(b) simply looked at him and asked, “Did you just punch me bro?” PO Lappas hit § 87(2)(b) with his nightstick in the right leg five or six times, however, it failed to gain his cooperation. Sgt. Lerebours jumped on § 87(2)(b)'s back and batted his arms down in an attempt to get him to stop holding onto the vehicle, but this too was unsuccessful in gaining his cooperation. After approximately five minutes of struggling with § 87(2)(b) PO Lappas was able to handcuff him.

PO Mombrun corroborated that force was used against § 87(2)(b) however, he went over to the other side of the vehicle to assist Sgt. Lerebours apprehend § 87(2)(b) and did not have a clear line of sight to § 87(2)(b)'s apprehension. As such, he was unable to describe what specific force was used to apprehend § 87(2)(b).

According to Patrol Guide Procedure 203-11, officers are required to use the minimum, necessary force during interactions with civilians (encl. 0A – B). In the escalating scale of force, the use of a nightstick should be used after the exhaustion of verbal commands, firm grips and compliance techniques, and then the use of pepper spray (encl. 0C).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **exonerated**.

Allegation D – Sgt. Luis Lerebours spoke discourteously to § 87(2)(b) at East New York Avenue and Schenectady Avenue.

Allegation E – Sgt. Luis Lerebours used pepper spray against § 87(2)(b) at East New York Avenue and Schenectady Avenue.

§ 87(2)(b) alleged that while officers were still trying to handcuff him, Sgt. Lerebours approached him from the front and said, “I’m going to mace you, you son of a bitch,” then sprayed him in the face for two minutes. § 87(2)(b)’s arrest photograph, which he said was taken shortly after he arrived at the stationhouse, did not show any redness, irritation, or indication of him having been pepper sprayed, and he did not testify that he washed his eyes out upon arrival to the stationhouse (encl. 3G).

§ 87(2)(b) was approximately three feet away from § 87(2)(b) during his apprehension, and had a clear line of sight. He did not see Sgt. Lerebours pepper spray § 87(2)(b) and did not corroborate that Sgt. Lerebours said, “I’m going to mace you, you son of a bitch.” § 87(2)(b) testified that Sgt. Lerebours said, “Do you want me to mace him,” before pepper spraying § 87(2)(b) but did not allege that he said, “I’m going to mace you, you son of a bitch.”

§ 87(2)(b) did not see Sgt. Lerebours pepper spray § 87(2)(b) and did not corroborate that he said, “I’m going to mace you, you son of a bitch.”

§ 87(2)(g)

Sgt. Lerebours, PO Lappas and PO Gardner all testified that Sgt. Lerebours removed his pepper spray canister to spray § 87(2)(b) but that it failed to discharge. Sgt. Lerebours denied saying, “I’m going to mace you, you son of a bitch.” PO Gardner did not hear Sgt. Lerebours make the alleged statement, and PO Lappas did not recall whether he did so. PO Mombrun did not recall whether Sgt. Lerebours attempted to pepper spray § 87(2)(b) and did not recall hearing him say, “I’m going to mace you, you son of a bitch.” Additionally, Det. Marconi rode in the van with § 87(2)(b) to the 71st Precinct stationhouse, and did not observe anything that led him to believe that § 87(2)(b) had been pepper sprayed.

Neither § 87(2)(b) nor § 87(2)(b) both within earshot of § 87(2)(b) and the officers, corroborated that Sgt. Lerebours said, “I’m going to mace you, you son of a bitch.” According to § 87(2)(b)’s testimony, he was standing approximately three feet away from § 87(2)(b) throughout his apprehension, but did not see Sgt. Lerebours pepper spray him. No one testified that they smelled pepper spray, were coughing, or heard anyone coughing during the incident. § 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **unfounded**.

Allegation F – PO Marc Lappas used a chokehold against § 87(2)(b) at East New York Avenue and Schenectady Avenue.

§ 87(2)(b) alleged that once the officers removed him from the vehicle, PO Lappas choked him for the duration of the incident before he was handcuffed and while he was being punched, struck with nightstick, and pepper sprayed.

§ 87(2)(b) did not have any injuries to his neck or throat, and he did not make any statements to medical personnel about having been choked (see medical records).

None of the civilian witnesses, including § 87(2)(b) or § 87(2)(b) corroborated that PO Lappas choked § 87(2)(b).

PO Lappas denied choking § 87(2)(b) at any point during the interaction, and none of the other officers saw PO Lappas choke § 87(2)(b).

§ 87(2)(g) Therefore, it is recommended that **Allegation F** be closed as **unfounded**.

Allegation G – An officer struck § 87(2)(b) with a nightstick at East New York Avenue and Schenectady Avenue.

§ 87(2)(b) alleged that an officer, who he was unable to describe in any detail, hit him in the legs with a nightstick six or seven times before he was placed in handcuffs.

As discussed above, § 87(2)(b) did not witness any officer hit § 87(2)(b) with a nightstick. § 87(2)(b) corroborated that PO Lappas hit § 87(2)(b) with a nightstick six to ten times in his legs, but did not mention anything about any other officer doing so. § 87(2)(b) similarly testified that PO Lappas repeatedly hit § 87(2)(b) with his nightstick, but did not observe any other officers use additional force against § 87(2)(b).

Sgt. Lerebours, PO Lappas and PO Gardner were consistent that PO Lappas was the only officer that struck § 87(2)(b) with a nightstick, and PO Mombrun did not see any officer do so, and was not directly involved in apprehending § 87(2)(b). § 87(2)(b) was already handcuffed by the time Det. Marconi and Det. McCarthy arrived on scene.

§ 87(2)(g) Therefore, it is recommended that **Allegation G** be closed as **unfounded**.

Allegation H – Det. Paul Marconi restricted § 87(2)(b)'s breathing at East New York Avenue and Schenectady Avenue.

Allegation I – Det. Paul Marconi spoke discourteously to § 87(2)(b) at East New York Avenue and Schenectady Avenue.

§ 87(2)(b) alleged that when he was placed in the van for transport, despite the fact that he was not resisting, Det. Marconi put his bodyweight onto his legs, restricting his breathing, and said, “I don’t give a fuck, get in the van.”

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) said that she saw § 87(2)(b) lying down in the van and the officers helping him sit up after she heard § 87(2)(b) say that he had back problems. She never saw any officers laying on or putting any weigh on § 87(2)(b) and did not hear any discourtesy. § 87(2)(b) watched officers put § 87(2)(b) in the van but did not corroborate either allegation. § 87(2)(b) did not seem to witness the officers putting § 87(2)(b) in the van.

Det. Marconi testified that he and his partner, Det. McCarthy, did not have any direct involvement in putting § 87(2)(b) in the van, which Det. McCarthy corroborated. Det. Marconi stated that after § 87(2)(b) was placed in the van, one of the officers from the 71st Precinct asked that someone ride in the van with § 87(2)(b) and that he volunteered to do so, which Det. McCarthy also corroborated. He sat next to § 87(2)(b) in the van on the ride to the 71st Precinct stationhouse, and was able to calm him down by the time they arrived. Det. Marconi denied putting his bodyweight on § 87(2)(b) or saying, “I don’t give a fuck, get in the van.”

PO Lappas and PO Gardner both testified that they were the only officers that transported § 87(2)(b) to the van. They did not see any officer lay on top of § 87(2)(b) in the van or hear any officer say, “I don’t give a fuck, get in the van.” None of the other officers that were interviewed corroborated either allegation.

§ 87(2)(g)

Therefore, it is recommended that **Allegations H and I** be closed as **unfounded**.

Allegation J – PO Marc Lappas spoke discourteously to § 87(2)(b) en route to the 71st Precinct stationhouse.

§ 87(2)(b) alleged he asked PO Lappas en route to the 71st Precinct stationhouse what happened to his pregnant wife. PO Lappas responded, “I don’t give a fuck about your wife being pregnant.” PO Gardner was also present at the time of the alleged discourtesy.

PO Lappas did not recall whether he had any conversation with § 87(2)(b) en route to the stationhouse, or whether he said, “I don’t give a fuck about your wife being pregnant. PO Gardner did not recall whether PO Lappas said, “I don’t give a fuck about your wife being pregnant.”

§ 87(2)(g)

Therefore, it is recommended that **Allegation J** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date